

San Mateo ALPR data retained at NCRIC — publicly posted vendor code



From

To

Date

Brian C <>

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Chief Barberini,

I just wanted to write to you to flag something new affecting the city, that you may not have been made aware of.

Until recently, SMPD has shared ALPR data with NCRIC. SMPD's own SOP 205 says the department "partner[s] with the NCRIC to store the ALPR data we collect with PIPs and Flock." Since February, a vendor contracted by NCRIC has made public the software infrastructure code (it was posted by an engineer of the company, not leaked). It's still up today, and multiple other people have made their own copies of it since late August, rendering it effectively permanently public.

The code that was published documents an automated process that fetches each participating agency's previous day's plate data, and stored it into a separate NCRIC database, with no expiration or purge setting enabled in the published configuration. The system contains 341 datasets, including a separate ALPR dataset for each contributing agency. None of them has an expiration or purge value set. Because that copy sits outside Flock, searches against it would not appear in the department's Flock audit logs.

TLDR: Every license plate read that san mateo recorded from at least mid-2023 until the department stopped sharing with NCRIC appears to remain in NCRIC's system (despite the department's 30-day flock retention settings), and is not set to expire or purge.

The vendor that operated the platform seems to no longer be in business, and that vendor also appears to retain copies of agency data, as well. It has additionally made public audit logs and other operational records from NCRIC's system, including San Mateo Police Department's search records (without any redactions).

Section 6 of the department's MOU with NCRIC provides that member agencies "remain the official custodian of all information contributed to the NCRIC–DSP." I would be very interested to know how the department has acted to protect its citizens' data at both another remote agency (NCRIC), and a now defunct private business. I had previously filed a PRA (W012376) asking for any records of the department restricting NCRIC's re-sharing of San Mateo ALPR data -- and the "no responsive records" to that request indicates that the department didn't even take the basic measure to protect its residents as the NCRIC MOU outlines. The MOU's Data Sharing section says data a member agency later declares should not be shared "shall be withdrawn by all Hosts from all NCRIC–DSP Systems within 48 hours, including deletion of any replications of the data" -- a step the department has produced no record of taking.

Separately, the published files include an export of NCRIC's search audit log. As an example of what's readable right now: on September 11, 2023, account atrujillo@cityofsanmateo.org ran three queries under case 230629003, searching for plate numbers 9GQP383, ALOHAJO and 7SZK222.

As the official custodian of this data, what specific actions is the department taking to protect our residents' privacy? In particular, I would like to know whether it intends to make the declaration to NCRIC described above, what the department has done to assess the exposure of the data already published, and what became of the copies held by a now-defunct software vendor.

I would appreciate a response ahead of the October council discussion of the department's Flock program -- ideally within the next week, so that I can take the department's position into account.

–brian